
Personal data retention and disposal policy

Document Version / Details: Ver. 3.0 / 17-Apr-2023



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Revision History

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Ver	Change Description	Sections	Date	Author	Reviewer	Approver
1.0	Initial Document	All	19 December - 2022	Priyanka Ashok	Vikram Patil + All function heads	Jagannath PV
2.0	Updated document based on inputs from Function heads and US mandates	All	7 March 2023	Priyanka Ashok	Vikram Patil + All function heads	Jagannath PV
3.0	Incorporated Audit logs	6	17 April 2023	Priyanka Ashok	Vikram Patil	Jagannath PV

References

Reader should read this document in conjunction with the following documents

No	Document Name	Ver	Location
1.	Privacy policy		https://www.ltimindtree.com/general-privacy-policy/
2.	Data retention timelines guide		MS teams
3.	Data Retention Policy		

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1 Introduction

In the course of carrying out its various functions, LTIMindtree collects personal information about employees, prospective employees, job applicants, visitors, vendors, prospective vendors, clients, business partners, marketing contacts and prospective clients. These records need to be properly safeguarded and retained to enable LTIMindtree to meet its business needs, legal requirements, to evidence events or agreements in the event of allegations or disputes and to ensure that any records of historic value are preserved.

The untimely destruction of records could affect:

- Increased exposure of personal data in the event of a data breach or a security incident
- LTIMindtree's business and reputation;
- Ability to defend or instigate legal actions;
- Ability to comply with statutory obligations;
- Attract penalties

Disposal of records is necessary to reduce administrative burden and ensure that LTIMindtree does not unlawfully retain records for longer than necessary (particularly those containing Personal Data or Sensitive Personal Data).

A defined and consistently enforced Personal Data Retention and Disposal Policy reduces the organization's risk by ensuring that Personal Data, either in electronic or physical format, is handled appropriately.

2 Policy Statement

This policy is applicable for all Personal Data elements, stored in electronic or physical format, and belonging to employees, prospective employees, job applicants, visitors, vendors, prospective vendors, clients, business partners, marketing contacts and prospective clients as Data Subjects.

Retention and Disposal of Personal Data of Data Subject would be governed by the applicable laws.

Regulatory data retention requirements can be categorized under any of the below mentioned area:

- Industry-specific
- Employment
- Health and safety
- Payroll and social security
- Direct tax
- Indirect tax
- Data privacy
- Corporate and secretarial
- Foreign exchange

- Anti-bribery
- Anti-trust
- Export control
- Immigration
- Cybersecurity
- Intellectual property

Retention and Disposal of customer provided personal information would be governed by the terms and conditions of the respective customer contracts or SOWs.

3 Scope

Personal Data records in scope: across various platforms:

- Physical Records – Some examples are Visitor Entry Registers, Employee Personal files, Tax proofs submitted by employees, Customer Invoices, Employee Training attendance records, etc.
- Electronic Records – Some examples are Customer and employee databases containing contact numbers, addresses, Bank Account details, Interests, Employee Salary Slips, Job applicant / candidate Resume, etc.
- Located in various geographic locations including in LTIMindtree offices and authorized off-site and third-party locations (e.g., subsidiaries, client sites, third parties that conduct LTI business, or other);
- Located in applications and tools (e.g., email, OneNote, SharePoint, BU / BEU / DU technology tools, vendor-licensed tools, client systems); and
- Located in LTIMindtree-designated storage locations (such as repositories, information systems or archives), on-premise, cloud, servers and portable media

4 Definitions

All definitions used in this policy will be as per the LTIMindtree Privacy Policy available at: <https://www.ltimindtree.com/general-privacy-policy/>

5 Responsibility

The Data Privacy Office and the Corporate Security Office of LTIMindtree is responsible for accuracy, implementation, updates and the rules and obligations of this policy.

The Delivery Manager, Delivery team is responsible for adhering to the data retention timelines and procedures for customer data and projects.

The respective Enabling Function Head in consultation with the Data Protection Office and CIS Team, is responsible for deciding the retention timelines and implementation of this Policy, as per applicable laws.

CIS team for configuring/implementing the data retention controls in systems based on the timelines defined in the policy.

Any questions regarding this Policy should be directed to the Office of Data Privacy at DataprotectionOffice@LTIMindtree.com

Each Personal Data and Sensitive Personal Data element shall be allocated to a specific LTIMindtree function which processes/handles the information. There may be such scenarios where the same data element is processed by two or more functions for different purposes and different sets of data is created by these functions.

The Data Privacy Office in consultation with the Enabling Functions shall identify and make respective functions accountable for such Personal Data elements.

6 Retention Timelines

Following are the details of each Personal Data category and their respective formats, retention periods and accountability. The timelines listed below in Table 1 are global timelines based on the respective jurisdiction norms and applicable laws. If there are any specific timelines mandated for a jurisdiction that is different from the global timelines listed below it will be called out in specific tables below:

TABLE 1:

Data Elements/ Categories*	Format	Retention Period*	Accountability	Disposal Considerations	Justification for Retention
Customer Personally Identifiable Information in Projects (PII)	Electronic Record	As per the contractual requirement (if specified in the contract) or Until erasure request exercised by Customer	Service Delivery Teams/ Projects	Fulfil Contractual Obligation	Performance of the contract
Vendor Personally Identifiable Information (PII)	Physical / Electronic Record	Dispose the PII two years if vendor does not have any transaction. Perpetual if a vendor contract exists	Procurement/ Finance Function	Fulfil Contractual Obligation Fulfil Statutory Or Other Regulatory Requirements And Evidence In The Case Of Dispute	Performance of the contract, Legitimate interest of LTIMindtree and As per the local laws
Job applicant / candidate Resume and Job applicant / candidate record	Physical / Electronic Record	(a) 6 months for unsuccessful job applicant / candidates (b) Employee retention timeline for successful job	TA Team/ HR PSS Function <i>For successful job applicant / candidates, after the hire,</i>	Meet Operational Needs	Legitimate interest of LTIMindtree

		applicant / candidates	<i>the data must move into the HR team.</i>		
Employee Personal File (Joining and Exit records and Documents), Human resource data that is collected during course of the employment	Physical / Electronic Record	15 years from the last working day. However, the First Name, Last Name, Middle name, MID, Date of Joining and Last Working Day data will be kept with LTIMindtree in perpetuity.	Human resource (HR)	Fulfil Statutory Or Other Regulatory Requirements And Evidence Events In The Case Of Dispute	For Litigation/post-employment grievances management. As per the local employment laws applicable to statute of limitation
Employee Expense data	Physical / Electronic Record	15 years from the last working day	HR / HR PSS Function	Fulfil Statutory Or Other Regulatory Requirements And Evidence Events In The Case Of Dispute	For Litigation/post-employment grievances management. As per the local employment laws applicable to statute of limitation
Performance Appraisal Records	Electronic Record	8 years from the last working day of the employee	HR / HR PSS Function	Evidence Events In The Case Of Dispute	For Litigation/post-employment grievances management. As per the local employment laws applicable to statute of limitation
Employee Disciplinary Complaints	Electronic Record	8 years from the last working day of the employee	HR Function	Fulfil Statutory Or Other Regulatory Requirements And Evidence Events In The Case Of Dispute	For Litigation/post-employment grievances management. As per the local employment laws applicable

					to statute of limitation
Payroll information including salary slips	Electronic Record	15 years from the last working day of the employee	Finance Function	Fulfil Statutory Or Other Regulatory Requirements	Tax purposes and regulatory inquiries
Tax proof submitted by employees	Physical / Electronic Record	15 years from the last working day of the employee	Finance Function	Fulfil Statutory Or Other Regulatory Requirements	Tax purposes and regulatory inquiries
Leave Records (details such as Medical / Maternity Leaves)	Physical / Electronic Record	15 years from the last working day of the employee	HR PSS Team / Finance Function	Fulfil Statutory Or Other Regulatory Requirements	Health related claims
Subcontractor information	Physical / Electronic Record	8 years from the last date of engagement	HR PSS Team	Fulfil Statutory Or Other Regulatory Requirements	For Litigation and grievances management. As per the local employment laws applicable to statute of limitation
Background Check data for successful job applicants	Physical / Electronic Record	1 year from the last working day of the employee	HR PSS Team <i>HR PSS team to receive monthly self-certification from vendor confirming the deletion. HR PSS team to conduct annual audit on vendor. Surprise audit by HR PSS team on vendor.</i>	Meet Operational Needs And Fulfil Contract	Performance of Contract

Background Check data for unsuccessful job applicants	Physical / Electronic Record	1 year from the last working day of the employee	HR PSS Team <i>HR PSS team to receive monthly self-certification from vendor confirming the deletion. HR PSS team to conduct annual audit on vendor. Surprise audit by HR PSS team on vendor.</i>	Meet Operational Needs And Fulfil Contract	Performance of Contract
Visitor information	Physical/ Electronic Record	2 years from the last date of visit	Admin/ Facilities Team	Meet Operational Needs	Security Purposes
Prospect and Enquiry Information of Prospective Business	Electronic	1 year, if no interaction made within this period	Marketing Team	Meet Operational Needs	Marketing purposes
Marketing Qualified Leads (MQL) and Sales Accepted Leads of Prospective Customers	Electronic	2 years, If not engaged in this period	Marketing Team	Meet Operational Needs	Marketing purposes
Sales Qualified Leads of Prospective Customers	Electronic	5 years unless they turn out to be customer	Marketing Team	Meet Operational Needs	Marketing purposes
Website Cookies	Electronic	As per the cookie policy	Marketing Team <i>Marketing team needs to ensure that the vendor managing the</i>	Meet Operational Needs	Marketing purposes

			<i>cookies comply to this</i>		
Active Clients Details	Electronic	Perpetual	Sales Excellence	Meet Operational Needs and Fulfil Contract	Marketing purposes
Inactive Accounts with history of previous engagement	Electronic	10 years from the last date engagement date	Sales Excellence	Evidence Events In The Case Of Dispute	Marketing purposes
Inactive Accounts with no history of previous engagement	Electronic	5 years from creation date	Sales Excellence	Meet Operational Needs	Marketing purposes
Travel Information	Electronic	8 years from the Last Working Day of LTIMindtree employee	Travel and Immigration Team	Meet Operational Needs, Statutory or regulatory compliance and Evidence Events In The Case Of Dispute	Immigration Purposes
Immigration Information	Electronic	8 years from the last working day of the LTIMindtree employee	Travel and Immigration Team	Meet Operational Needs, Statutory or regulatory compliance and Evidence Events In The Case Of Dispute	Immigration Purposes
Vaccination details collected from Employees	Electronic	12 months from the last working day of the LTIMindtree employee	HR and Internal IT	Meet Operational Needs, Statutory or regulatory compliance and Evidence Events In The Case Of Dispute	Legitimate interest of LTIMindtree and As per the local laws
Diversity details collected	Electronic	3 years from the last working day of the	HR, Diversity team and Internal IT	Meet Operational Needs, Statutory	Legitimate interest of LTIMindtree

from Employees		LTIMindtree employee		or regulatory compliance	and as per the local laws
Company finance data	Physical / Electronic Record	Perpetual	Finance Function	Fulfil Statutory Or Other Regulatory Requirements	Tax purposes and regulatory inquiries
Company shareholder data	Physical / Electronic Record	Perpetual	Finance Function	Fulfil Statutory Or Other Regulatory Requirements	Tax purposes and regulatory inquiries
All Legal data	Physical / Electronic Record	Perpetual	Legal function	Fulfil Statutory Or Other Regulatory Requirements	Legal purposes and Statutory requirements
Pension related data	Physical / Electronic Record	Perpetual	Finance function	Fulfil Statutory Or Other Regulatory Requirements	Legal purposes and Statutory requirements
Incident related data	Physical / Electronic Record	Perpetual	CIS function and related functions	Fulfil Statutory Or Other Regulatory Requirements	Legal purposes and Statutory requirements
Audit logs	Electronic Record	6 months	CIS function	Meet Operational Needs, Statutory or regulatory compliance and Evidence Events In The Case Of Dispute	Legitimate interest, For Litigation, Evidence, Investigation, Record of access

**Note: The Table given above is illustrative for the various document types*

TABLE 2:

Following are the details of job applicant Personal Data category for United states, Canada and Mexico.

Data Elements/ Categories*	Format	Retention Period*	Accountability	Disposal Considerations	Justification for Retention
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Job applicant / candidate Resume and Job applicant / candidate record	Physical / Electronic Record	(a) 3 years for unsuccessful job applicant / candidates (b) Employee retention timeline for successful job applicant / candidates	TA Team/ HR PSS Function <i>For successful job applicant / candidates, after the hire, the data will remain in Success factors</i>	Meet Operational Needs	Legitimate interest of LTIMindtree Fulfil Statutory Or Other Regulatory Requirements
Background Check data for successful applicants	Physical / Electronic Record	3 year from the last working day of the employee	HR PSS Team <i>HR PSS team to receive monthly self-certification from vendor confirming the deletion. HR PSS team to conduct annual audit on vendor. Surprise audit by HR PSS team on vendor.</i>	Meet Operational Needs And Fulfil Contract Fulfil Statutory Or Other Regulatory Requirements	Performance of Contract Fulfil Statutory Or Other Regulatory Requirements
Background Check data for unsuccessful applicants	Physical / Electronic Record	3 year from the last working day of the employee	HR PSS Team <i>HR PSS team to receive monthly self-certification from vendor confirming the deletion. HR PSS team to conduct annual audit on vendor. Surprise audit by HR PSS team on vendor.</i>	Meet Operational Needs And Fulfil Contract Fulfil Statutory Or Other Regulatory Requirements	Performance of Contract Fulfil Statutory Or Other Regulatory Requirements

All other categories of data will align with the global timelines list in Table 1

- Delivery Managers within each customer project and the Enabling Function Head are responsible for identifying the different data elements and categories for updating the table above.
- Enabling Function Heads along with the Data Protection Office in consultation with the Legal Team shall be responsible for identifying, enhancing the retention periods for the listed data elements in the table above.
- If there are new business processes introduced, new data element categories shall be added in the above table with all the necessary details. Respective accountable functions shall ensure that data is disposed securely in accordance with this policy, post the defined retention period.
- In case of a conflict between the above Personal Data Retention and Disposal Process Policy and statutory requirements, then the statutory requirements shall prevail. In case of a conflict between the above Personal Data Retention and Disposal Process Policy and the Data Retention Policy then the Personal Data Retention and Disposal Process Policy shall prevail.
- *Any Personal Data that falls under a Legal hold (such as dispute, regulatory inquiry, investigation, data breach etc.) will not be deleted until the Legal hold has been released after which a one year retention period will apply post the Legal hold release date*

7 Data Disposal

The key disposal/ retention considerations checklist should be considered prior to any decision on disposal of documents.

Key disposal/retention considerations checklist:

- Is retention required to fulfil the contract?
 - Is retention required to fulfil statutory or other regulatory requirements?
 - Is retention required to evidence events in the case of a dispute?
 - Is retention required to meet the operational needs?
 - Is retention required because the document or record is of historic interest or has intrinsic value?
- CIS Team shall define and decide strategies to dispose the Personal Data, in agreement with respective Enabling Function Heads, Delivery Managers for customer projects and the Data Privacy Office.

Physical Format

- Physically stored Personal Data and Sensitive Personal Data shall be disposed using secure shredders, post the retention period and after obtaining approval from the Project/ Enabling Function Head.

- Projects and Enabling Functions processing Personal Data and Sensitive Personal Data shall not take unnecessary print outs of Personal data, as this increases the risk of Data Breach/ Data Incidents.

Electronic Format

- Electronically stored Personal Data and Sensitive Personal Data shall be disposed with the help of the CIS Team, post the retention period with the approval of the Project/ Enabling Function Head.
 - In case Personal Data and Sensitive Personal Data is stored in Computers, flash drives, CD ROMs, DVDs, memory sticks etc., it shall be erased using a suitable tool.
 - Appropriate data destruction techniques should be used to dispose-off media containing Personal Data or Sensitive Personal Data such as degaussing, physical destruction, or otherwise modifying the information in those records to make it unreadable, undecipherable or non-reconstructable by redacting/ encrypting to protect against unauthorized access, disclosure or use of personal information.
- Media that cannot be wiped shall need to be sufficiently protected before being overwritten e.g. storage tapes in a locked safe.

8 Data Retention by Third parties

Where LTIMindtree relies on third parties to assist in its processing activities, it will choose a Data Processor or Subprocessor. The Data Processor or Subprocessor who processes LTIMindtree data shall dispose off or delete such Personal Data or Sensitive Personal Data in accordance with the time period mentioned in this Policy or the respective service agreement with LTIMindtree.

The respective enabling function / delivery owner who has engaged with the sub processor shall ensure the following is adhered to pertaining to data retention:

- For deletion of record, a corresponding deletion request is transmitted to the vendor when a delete request is executed by LTIMindtree
- Upon termination of the contract, all personal data and confidential data will be deleted/returned by the vendor systems unless prohibited by law (that needs to be documented and agreed between LTIMindtree function and vendor in writing)

LTIMindtree Limited

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